

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 07/13/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

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Meeting ID: 161 108 5023
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Law & Motion - Only Demurrer/MTS

1. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Before the Court is a demurrer by defendants City of Richmond and Hector Lopez, City Senior Planner, to the first amended complaint. For the reasons set forth, the Court sustains the demurrer as set forth further below.

Background

In his operative first amended complaint ("FAC"), Plaintiff alleges he is the owner of a duplex located at 815-831 24th Street in Richmond (the "Property"). (FAC ¶ 2.) The FAC has 49 pages of allegations with Exhibits A through T. The Court summarizes the gist of Plaintiff's claims below.

Plaintiff asserts the City improperly denied his application for approval to subdivide the Property into

"two separate legal units," or for a conversion of the duplex into a two-unit condominium. (FAC ¶ 7.) He contends the City "improperly" treated his application as a request for a lot split subdivision, but that his application was really for a condominium conversion. (*See, e.g.*, FAC ¶¶ 56-60, 61.c..)

The six utility meters for the Property are all located at 831 24th Street ("Parcel B"). (FAC ¶ 2.) Plaintiff was advised that for a lot split, three of the six utility meters would have to be moved to 815 24th Street ("Parcel A") so that each separate property would have its own utility service. (FAC ¶ 10.) Plaintiff was advised that leaving the six utility meters only on one of the two proposed separate properties in a condominium conversion with a utility easement was only acceptable if there was a homeowners' association. (FAC ¶ 56 and Exh. N.)

Despite requests by Plaintiff for a further written determination by the Director of Planning or for the City to schedule a hearing on Plaintiff's application before the Planning Commission, Plaintiff alleges the City refused to schedule a hearing. (FAC ¶¶ 71-76, 74 (p. 37) – 81 (p. 40), and Exhs. S, T.) Plaintiff alleges that after Lopez advised Plaintiff in March 2025 of the Director of Planning's determination the application was approved on the condition the three utility meters be moved to Parcel A, Plaintiff repeatedly asked for a hearing on the application to be set before the Planning Commission. (FAC ¶¶ 71-81 (p. 40), and Exhs. S, T.) No Planning Commission hearings were held in April and May 2025, because the City advised him there were no agenda items, despite his requests for a hearing, and though Plaintiff was advised there would be a June 19, 2025 Planning Commission hearing, he was advised the June meetings were cancelled, but then also told the Planning Commission agenda for June 2025 was full and any hearing would have to be set in July 2025, but he was told by Lopez he had to cancel his application to receive a hearing. (FAC ¶¶ 71-86, 88-91.) Though he tried to exhaust his administrative remedies before the City between April and June 2025, the City provided no clear manner for him to do so. (FAC ¶¶ 88-93 and Exhs. S, T.)

On the merits, Plaintiff contends in the FAC that the City misinterpreted Plaintiff's application to approve the subdivision as a lot split; though he admittedly alleges that his application submitted to the City in or about April 2024 was for a lot split, he alleges he later informed the City he was changing his application to a condominium conversion and that the City began treating the application as a request for approval of the project as a condominium conversion. (FAC ¶¶ 3-7, 10-12, 14, 17, 18, 24, 31 (p. 11), 37, 51, 52, 53, 56-60, and Exhs. B [referring to helping him "subdivide" the property and changing request to a condominium conversion], J [minor subdivision], L [App. dated 11/26/2024 for "splitting the duplex to 2 separate [sic] condo or town house"], N, O, P [notably addressing practical difficulties complying with relocating meters for lot split and referring to condo conversion as "second option"].) (*But see* FAC p. 26, ll. 18-28 ["Plaintiff alleges that he submitted and pursued an application to convert an existing two-unit duplex into a condominium/townhouse common-interest development. Plaintiff further alleges that the City initially processed the application under that framework, requested and reviewed extensive documentation consistent with a duplex-to-condominium/townhouse conversion, and directed Plaintiff's submissions accordingly," and FAC ¶ 70, p. 34, allegations which appear to contradict Plaintiff's earlier allegations and records that his initial application was for a lot split, and in May 2024 and November 2024 he tried to modify the application to a condominium conversion].)

Plaintiff contends that there is no requirement that he have utility meters on each parcel under the Richmond Municipal Code, Pacific Gas and Electric's and East Bay Municipal Utility District's

requirements for the provision of utility service, and what he alleges were the City's representations regarding the requirements for a condominium conversion, which is what he asserts he applied for. (FAC ¶¶ 40-43, 45, 48, 53, 56-60 and Exhs. M, N, O, P [referring to "second option" of condo conversion].)

Plaintiff's original complaint was filed July 31, 2025 and included nine causes of action. Plaintiff's current complaint lists six causes of action, including a petition for writ of mandate (1st C/A), abuse of discretion (2nd C/A), misapplication of Municipal Code (3rd C/A), failure to perform mandatory duty (4th C/A), declaratory relief (5th C/A), and injunctive relief (6th C/A).

Legal Standards for Ruling on Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.) (*See also Evans, supra*, 38 Cal.4th at 6.) In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.)

Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (*See also Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.) A demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

Defendants' Requests for Judicial Notice

In support of the current demurrer, Defendants filed a request for judicial notice, asking the Court to take judicial notice of: (1) a Planning Application Form pertaining to the Property apparently signed by Plaintiff (Def. RJN Exh. 11); (2) "Attachment 1" City of Richmond Planning Commission Resolution No. 26-01 dated January 15 2026 (Def. RJN Exh. 12); (3) Notice of Action by the City of Richmond Planning Commission dated January 21, 2026 (Def. RJN Exh. 13); and (4) Notice of Entry of Order dated February 26, 2026, attaching the Court's January 27, 2026 Order adopting the Court's January 26, 2026 tentative ruling (Def. RJN Exh. 14). (Evid. Code § 452(c) and (d).) Defendants' request for judicial notice also asks the Court to take judicial notice of the documents previously subject to Defendants' request for judicial notice and supplemental request for judicial notice filed in connection with Defendants' demurrer to the original complaint. Those documents are described at length in the January 26, 2026 tentative ruling, adopted as the Order of the Court by Order filed January 27, 2026. (Def. RJN Exh. 14 [1/27/2026 Order p. 2].) Defendants specifically request judicial notice of the various articles and specific sections of the Richmond Municipal Code ("RMC") identified in the prior ruling and Defendant's prior RJNs, which are the proper subject of judicial notice under Evidence Code sections 452(b) and (c).

Plaintiff's 19-page response to the request for judicial notice does not object to the Court taking judicial notice of the existence of any of the documents subject to the Defendants' current and prior RJNs. Plaintiff contends that judicial notice of the interpretation or truth of the content of the documents subject to judicial notice is improper where the interpretation or truth is reasonably disputable. This position is consistent with the general limits of judicial notice. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

The Court also agrees with Plaintiff that judicial notice cannot be used to convert a hearing on a demurrer into a contested evidentiary hearing as a demurrer is not the appropriate procedural mechanism for resolving factual disputes. (*Fremont Indemnity, supra*, 148 Cal.App.4th at 113-115.) On the other hand, as the Court indicated in its ruling on the prior demurrer, the allegations of a complaint are not required to be accepted as true if they are contradicted by matters subject to judicial notice. (*Evans, supra*, 38 Cal.4th at 638 Cal.4th at 6, 7 fn. 2, 8 fn. 3, and 9 fn. 5 [in which the Court took judicial notice of a City resolution, legislative history, a memorandum from a city manager, minutes, a city attorney's opinion, and a letter, that were alleged in the original complaint but not the operative complaint, from which both sides quoted, finding' "no potential dispute exists as to the letter's language, allowing its consideration on demurrer" and stating, " "[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]' [Citations omitted.]".])

With these considerations and limitations, the Court **GRANTS** Defendants' requests for judicial notice.

Plaintiff's Opposition Violates the Applicable Rules

Plaintiff's memorandum in opposition to the demurrer, styled as "Plaintiff's Response to Memorandum of Points and Authorities in Support of Defendants' Demurrer to Plaintiff's First Amended Complaint for Damages" filed on March 16, 2026, violates applicable California Rules of Court and the applicable case law governing demurrers. First, the opposition far, far exceeds the 15-page limit for a memorandum, without any record before the Court that Plaintiff sought permission to file an overlength memorandum. (Cal. R. Ct., Rule 3.1113(d) ["no opening or responding memorandum may exceed 15 pages"] and Rule 3.1113(e) [application for leave to file overlength memorandum].) Plaintiff's memorandum is 54 pages. Second, a memorandum of 10 pages or longer requires tables of contents and authorities. (Cal. R. Ct., Rule 3.1113(f) ["memorandum that exceeds 10 pages must include a table of contents and a table of authorities"].) The opposition also violates that Rule. Third, the opposition attaches approximately 50 pages of unauthenticated exhibits. Even if authenticated, Plaintiff has not filed a request for judicial notice of any or all of the exhibits, and it is not clear to the Court that all of the documents would be proper subjects of judicial notice in any event. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; Cal. R. Ct., Rule 3.1113(l) ["Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)."].)

In addition to the 54-page opposition memorandum, Plaintiff filed a 19-page "Plaintiff's Response to Request for Judicial Notice in Support of Defendants' Demurrer to First Amended Complaint." That

pleading also contains additional arguments regarding the merits of the demurrer that go beyond merely addressing whether and to what extent the documents are properly subject to judicial notice. The response to the request for judicial notice is at least in part a vehicle for making additional argument on the merits of the demurrer, and to that extent, constitute an improper additional opposition memorandum.

Though Plaintiff is self-represented, Plaintiff is required to comply with the applicable rules and procedures like any other litigant. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.) The Court's January 27, 2026 Order on Defendants' demurrer to the original complaint specifically informed Plaintiff that his 26-page opposition violated the rules regarding page limits and required tables of contents and authorities, and that the Court could not consider exhibits attached to Plaintiff's opposition to the demurrer to the original complaint except matters subject to judicial notice. (Order filed 1/27/2026 attaching 1/26/2026 Tentative Ruling pp. 3-4 ["Plaintiff's Multiple Oppositions and Exhibits Opposing Demurrer"].)

Plaintiff's current opposition not only ignores the court rules; it ignores the Court's prior ruling advising Plaintiff of the applicable rules and that he was obligated to comply with them. Rather than comply, Plaintiff has flouted the rules in his new opposition. The Court has nothing before it showing Plaintiff's conduct was reasonable in filing this clearly excessively overlength and non-compliant brief. In light of the Court's prior detailed ruling advising Plaintiff of defects in his prior oppositions, the applicable page length and tables requirements, and the Court's inability to consider evidence in the context of the demurrer, nothing on this record suggests that Plaintiff's opposition violated the rules through inadvertence, mistake, or excusable neglect such as might warrant the Court's exercising its discretion to consider the overlength memorandum. (Cal. R. Ct, Rule 3.1113(g).)

The Court will not exercise its discretion to consider Plaintiff's overlength and noncompliant opposition under the circumstances. (Cal. R. Court, Rules 3.1113(g) and 3.1300(d).) The Court has read and considered the first 15 pages of the opposition, up to the page limit allowed under the Rules.

Plaintiff's Unauthorized Surreply

On July 7, 2026, Plaintiff filed a "Response" to the Defendants' Reply, which the Court interprets as an unauthorized surreply filed in violation of Code of Civil Procedure section 1005(b), which has no provision for filing a surreply, and Rule 3.1113(d) of the California Rules of Court, which also has no provision allowing a surreply. The Court will not consider the improperly filed Response to the Reply.

Analysis

Defendants generally demur to the FAC in its entirety on the ground that Plaintiff failed to exhaust his administrative remedies. They also have filed general demurrers to each of the six causes of action on the ground that the facts alleged fail to state causes of action.

A. Demurrer to the Entire Complaint for Failure to Exhaust Administrative Remedies

Defendants reassert their contention that Plaintiff failed to exhaust his administrative remedies. The factual basis of their argument, however, is different from the basis for the failure to exhaust argued

in support of Defendants' demurrer to the original complaint.

"A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156 [emphasis added].) The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 [" 'With limited exceptions, . . . where an adequate administrative remedy is provided . . . , resort to that forum is a "jurisdictional" prerequisite to judicial consideration of the claim.' [Citation omitted, emphasis added.]"]).)

Defendants argue that on January 15, 2026, roughly six months after the lawsuit was commenced while Defendants' demurrer was pending and before Plaintiff filed his FAC, Defendants scheduled a hearing on Plaintiff's application for the lot split/condominium conversion before the City Planning Commission. The Planning Commission adopted a resolution addressing Plaintiff's application, Resolution 26-01, which approved the lot split with the condition of moving the three utility boxes and denied approval of Plaintiff's application to the extent it sought a condominium conversion because the conversion of the Property to a two-unit condominium project is prohibited by the RMC. (Def. RJN Exh. 12; RMC § 15.04.711.020 B.)

The City Defendants' demurrer for lack of exhaustion is made on the ground that the FAC fails to allege facts demonstrating that Mr. Malboubi exhausted his administrative remedies in light of the judicially noticeable fact that the City adopted Resolution 26-01 making a determination on Plaintiff's application, whether it was construed as an application for a lot split or as an application for a condominium conversion, and that it issued a Notice of Hearing with appeal information following the adoption of the Resolution, providing Plaintiff an administrative remedy of appeal from that determination. In the face of these judicially noticed facts (i.e., the facts of the Resolution 26-01 and Notice of Action), Plaintiff has not alleged facts showing that he exhausted his administrative remedies to challenge the determinations made in Resolution 26-01 administratively, or that an excuse or exception to the exhaustion requirement applies such that he was not required to pursue administrative review of Resolution 26-01 before proceeding in Court for judicial review.

The Court agrees that the FAC is deficient based on its lack of factual allegations of exhaustion or excuse in the face of Resolution 26-01 and the Notice of Action. The FAC's allegations address exhaustion events preceding the filing but do not address these post-litigation developments. Whatever excuse or justification may have existed for commencing suit in July 2025 does not address the current state of the facts which show at least on their face that the City Planning Commission conducted a hearing, issued a written decision, and issued a Notice of Action in January 2026. Indeed, this is the essential relief Plaintiff's seeks and prays for in his FAC. (FAC pp. 45-53.)

Though the City asserts that Plaintiff did not appeal the Planning Commission to the City Council (*see, e.g.*, Reply p. 2, ll. 20-24), the documents before the Court on the demurrer, including those subject to Defendants' request for judicial notice, do not show the absence of a timely appeal, or a bar of the statute of limitations as asserted in Defendants' reply. It is not clear enough to the Court whether

Plaintiff has conceded in his opposition or otherwise that he did not appeal the Planning Commission decision timely, or at all, or whether he can allege some facts showing an exception to the exhaustion requirement, though his ability to do so seems doubtful.

The demurrer to the entire FAC on the ground of Plaintiff's failure to allege facts showing exhaustion of administrative remedies, or an excuse for not exhausting such remedies, based on Resolution 26-01 and the Notice of Action (Def. RJN Exhs. 12, and 13) is **SUSTAINED**. The Court will grant Plaintiff **LEAVE TO AMEND** for the reasons stated.

B. Petition for Writ of Mandate (1st C/A)

Plaintiff's FAC includes over 44 pages of allegations leading to the portion of the FAC alleging his causes of action in paragraphs that are not sequentially numbered from the preceding allegations. (FAC pp. 45-49.) Plaintiff repeats each of the "causes of action" twice and then sets forth the relief he seeks. (FAC Prayer for Relief ¶¶ 49-53.)

As to the first cause of action, Plaintiff alleges a petition for writ of mandate under Code of Civil Procedure section 1085. Plaintiff specifically alleges: "This cause of action seeks a writ compelling Defendants to comply with their legal duties in processing Plaintiff's condominium/townhouse (condo/TH) conversion application. Plaintiff alleges that Defendants failed to follow required procedures, failed to issue a clear written decision with findings, and failed to provide a meaningful administrative appeal path. Plaintiff seeks an order directing the City to set aside the challenged action, apply the correct legal standards, and process the condo/TH conversion application in a lawful manner, including issuance of a written determination and provision of an appeal process consistent with City procedures and applicable law." (FAC pp. 46-47.)

Mr. Malboubi lists the relief he seeks in connection with the writ of mandate, which in summary is a writ compelling the City to (a) vacate the March 5, 2025 staff-level land decision (FAC Exh. N); (b) "resume" processing Plaintiff's application for a condominium conversion pursuant to the November 13, 2024 email (FAC Exh. J); (c) if Defendants contend "Homeowners Association (HOA) documentation, CC&RS, or other condominium-related recorded documents are required," direct the City to give Plaintiff a reasonable time to submit the materials; (d) preclude the City from denying the application for the condominium conversion for failing to previously provide this documentation; (e) require Defendants to complete processing of the condominium conversion application, issue a written decision with findings based on the "correct legal standards" within thirty days of the Court's order sufficient to permit a meaningful administrative appeal. (FAC pp. 45-47, 49-53.)

1. Writ of Mandate Standards

Code of Civil Procedure section 1085 provides that "A writ of mandate may be issued by any court to any . . . board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station" (Code Civ. Proc. § 1085(a).) "To obtain a writ of mandate, 'the petitioner must show there is no other plain, speedy, and adequate remedy; the respondent has a clear, present, and ministerial duty to act in a particular way; and the petitioner has a clear, present and beneficial right to performance of that duty.'" [Citation, internal quotation marks omitted.] (*California Privacy Protection Agency v. Superior Court* (2024) 99 Cal.App.5th 705, 721 [emphasis added].) (*See also Sacks v. City of Oakland* (2010) 190 Cal.App.4th 1070, 1081.)

" 'A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists.' [Citation omitted.]" (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.) " 'Put another way, a ministerial act is one "[w]here a statute or ordinance clearly defines the specific duties or course of conduct that a governing body must take," thus "eliminat[ing] any element of discretion." ' [Citation, internal quotation marks omitted.]" (*California Privacy Protection Agency, supra*, 99 Cal.App.5th at 721 [emphasis added].) "While a writ may issue against a county, city or other public body or against a public officer, ' "the writ will not lie to control discretion conferred upon a public officer or agency. [Citations.] . . . " ' [Citation omitted.]" (*Sacks, supra*, 190 Cal.App.4th at 1081 [emphasis added].)

2. Application of Standards to the FAC

Plaintiff's FAC, in conjunction with matters which are properly within the scope of judicial notice, does not allege facts stating a claim for a writ of mandate under the standards of Code of Civil Procedure section 1085 and the case law above. First, Plaintiff has now made it clear that he contends he is applying to the City to convert his two-unit duplex into a condominium project. RMC section 15.04.711.020 A.4 and B prohibits the conversion of a property to a condominium project if the conversion would result in a condominium project consisting of fewer than five units. He has therefore not alleged facts in the FAC showing that the City has a clear, present and ministerial duty to process an application for conversion of a duplex to a condominium project that would be comprised of only two units based on RMC section 15.04.711.020.

Second, the Court can take judicial notice that Resolution 26-01 was adopted by the City Planning Commission. The Resolution on its face shows the City explicitly considered and denied Plaintiff's application to the extent it was an application for a condominium conversion of the Property based on the prohibition of conversions to a condominium project of less than five units under RMC section 15.04.711.020. (Def. RJN Exh. 12.) Further, Resolution 26-01 and the Notice of Action (Defs. RJN Exhs. 12, 13) show that the relief Plaintiff presently seeks in the petition for writ of mandate cause of action is essentially moot, because Plaintiff has already been given the relief he seeks, specifically a determination of his application for conversion of the Property to a condominium project, a written determination, and a path to appeal the determination. To the extent he asks to "set aside" the March 5, 2025 determination (FAC Exh. N), that determination was effectively superseded or displaced when the City Planning Commission reviewed his application(s) and made the determinations reflected in Resolution 26-01 and the Notice of Action.

Third, the authorities indicate that approval of a subdivision, which includes a condominium conversion, is a matter of discretion with the City. (Govt. Code §§ 66424 [defining subdivision], 66473, 66474, and 66474.1 [city approval, conditional approval, or denial of approval of a parcel map based on state law and local ordinances]; *Youngblood v. Board of Supervisors* (1978) 22 Cal.3d 644, 653-656 [finding no "abuse of discretion" in approval of tentative map for subdivision as consistent with general plan, stating "it is only fair to the developer and to the public interest to require the governing body to render its discretionary decision whether and upon what conditions to approve the proposed subdivision when it acts on the tentative map"].) The Court in ruling on the prior demurrer set forth an exhaustive analysis of various provisions of the Civil Code and the Subdivision Map Act

("SMA") addressing their application to condominiums and the subdivision at issue here and the discretion granted to a public agency in approving a subdivision, which the Court will not reiterate here. (See Def. RJN Exh. 14 pp. 7-8.) Since the approval of the subdivision proposed by Plaintiff is discretionary, Plaintiff has not alleged facts in the FAC showing that Defendants have a mandatory, ministerial duty that can be the subject of the writ of mandate cause of action.

On these grounds, the demurrer to the first cause of action for a petition for writ of mandate under Code of Civil Procedure section 1085 is **SUSTAINED**.

C. Abuse of Discretion, Misapplication of Municipal Code (2nd, 3rd C/As)

Plaintiff alleges the second cause of action for abuse of discretion "is based on Defendants' arbitrary and capricious handling of Plaintiff's condo/TH conversion application. Plaintiff alleges that Defendants repeatedly changed the characterization of the project, applied shifting and inconsistent requirements, and relied on rationales not identified during the review process. Plaintiff further alleges that Defendants imposed or attempted to impose conditions not supported by the stated legal framework and denied Plaintiff a fair and orderly process by refusing to issue a written decision or to allow timely Planning Commission review." (FAC p. 47.)

He alleges the third cause of action for misapplication of the Municipal Code is "based on Defendants' application of inapplicable or incorrect Richmond Municipal Code provisions to Plaintiff's condo/TH conversion application. Plaintiff alleges that Defendants cited or relied on code provisions governing different types of projects, including provisions aimed at larger projects or different regulatory purposes, and used those provisions to justify denial, impose conditions, or obstruct appeal. Plaintiff seeks a determination that Defendants misapplied the municipal code and must evaluate Plaintiff's condo/TH conversion application under the correct legal standards." (FAC pp. 47-48.)

Reading through the lengthy allegations that precede these claims, Plaintiff contends that Defendants abused their discretion by treating his application as an application for a lot split, requiring him to move the three utility boxes as a condition to the lot split, to the extent considered as a condominium conversion, still requiring the utility boxes to be moved or imposing requirements for the lot split/conversion only required by the RMC for larger developments and not applicable to his duplex. Plaintiff contends no written directive from the utility companies requires relocating the three utility meters, citing Exhibit M to the FAC, another basis for these claims.

The allegations of the FAC and exhibits, and documents of which the Court has taken judicial notice, however, do not show that Plaintiff has stated these causes of action. To state a claim for abuse of discretion, Plaintiff must allege facts sufficient to show that Defendants acted in a manner that was "arbitrary, capricious, or entirely lacking in evidentiary support." (*Sacks, supra*, 190 Cal.App.4th at 1082.) Where, as here, the claim is based on a city's interpretation and implementation of its own ordinance, the Court accords "great weight to the administrative agency's interpretation and implementation of the ordinance it was charged with executing. [Citations omitted.]" (*Id.* at 1091.)

Plaintiff alleges that Mr. Lopez testified that RMC section 15.04.711.020 does not apply to a conversion of a duplex such as the Property. RMC section 15.04.711.020 does not apply because it defines a condominium conversion to exclude a condominium conversion project in which the project would have less than five units; the express stated purpose of RMC section 15.04.711.020 is to prohibit condominium conversions that would result in a condominium project of less than five units.

(RMC §§ 15.04.711.020 A.4. and B.)

Plaintiff in part alleges that the City imposed a requirement for an HOA or CC&Rs which only apply to larger condominium developments or to new, larger condominium construction under RMC sections 15.04.711.010 and 15.04.711.020, or that the requirements were "shifting." Plaintiff's FAC allegations show that Plaintiff's application shifted from a lot split to a "second option" of a condominium conversion of the duplex, as cited above. Exhibit N to the FAC, and the records subject to judicial notice, including the determination by the Planning Commission in Resolution 26-01, show that the City exercised its discretionary authority for approval of subdivisions (see authorities cited in connection with the first cause of action), allowed a subdivision of the Property as a lot split with the utility relocation condition, and denied a condominium conversion.

Whatever discussions, documents, and interim reviews may have occurred, the "determination" reflected in the March 5, 2025 email (FAC Exh. N) and the Planning Commission Resolution No. 26-01 essentially reached the same result. The denial of the condominium conversion of a duplex is consistent with RMC sections 15.04.711.020 A.4 and B, so Plaintiff has not alleged facts demonstrating an abuse of discretion or misapplication of those sections in denying his condominium conversion in Resolution 26-01.

Plaintiff's argument that the PG&E Rules do not require relocation of utilities under the circumstances for a condominium project similarly fails to demonstrate that the City abused its discretion in approving the subdivision of Plaintiff's Property by imposing the condition of relocating the three utility boxes. In the FAC and in the first portion of Plaintiff's opposition, Plaintiff cites no authority that limits the conditions the City can impose in exercising its discretionary authority to approve the subdivision based on whatever rules the public utilities may have.

Further, the excerpt of Rule M on which Plaintiff relies to show relocation of the three utility boxes was not required by PG&E at least appears to be incomplete and does not appear to apply to a condominium project, whether a conversion or new construction. A condominium project is not a building with "two or more tenants" or an apartment building or mobile home park, nor is it similar to an apartment building or mobile home park because in a condominium project, there is separate legal ownership of each legal unit. (See FAC Exh. M (Rule 16, paragraph 3.a. ["MULTIPLE OCCUPANCY. in a building with two or more tenants, or where more than one meter is used on the same Premises, the meters normally shall be grouped at one central location, or as otherwise specified by PG&E, and each meter position or socket shall be clearly and permanently marked by Applicant, customer, or owner of the Premises to indicate the particular unit, occupancy, or load supplied by it. [¶] a. RESIDENTIAL. For revenue billing, electric service shall be individually metered to every residential unit in a residential building or group of buildings or other development with multiple tenants such as, but not limited to, apartment buildings, mobile home parks, etc., except as may be specified in Rule 18 and applicable rate schedules." (Emphasis added.)].)

For these reasons, the facts alleged by Plaintiff do not meet the standard to demonstrate an abuse of discretion under *Sacks, supra*, nor do they demonstrate that Defendants misapplied the RMC.

The demurrers to the second and third causes of action are **SUSTAINED**.

D. Failure to Perform Mandatory Duty, Govt. Code § 815.6 (4th C/A)

Plaintiff asserts that this cause of action "alleges that Defendants failed to perform mandatory, ministerial duties required by law, including duties to issue a written decision and provide required findings, and to provide a procedure for administrative review. Plaintiff alleges that Defendants' refusal to issue a written denial or cancellation letter, and their shifting instructions regarding appeal, prevented Plaintiff from exhausting administrative remedies and rendered further administrative remedies unavailable or futile. Plaintiff seeks relief for Defendants' failure to perform required duties in connection with the condo/TH conversion application."

Government Code section 815.6 provides, "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." (Govt. Code § 815.6 [emphasis added].) A statutory cause of action must be pled with specificity. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.)

"The elements of liability under Government Code section 815.6 are as follows: 'First and foremost, application of section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. [Citation.]' [Citation omitted, italics in original.] Courts have construed this first prong rather strictly, finding a mandatory duty only if the enactment 'affirmatively imposes the duty and provides implementing guidelines.' [Citations omitted.] [¶] 'Second, but equally important, section 815.6 requires that the mandatory duty be "designed" to protect against the particular kind of injury the plaintiff suffered. The plaintiff must show the injury is " 'one of the consequences which the [enacting body] sought to prevent through imposing the alleged mandatory duty.' " [Citation.] . . . If these two prongs are met, the next question is whether the breach of the duty was a proximate cause of the plaintiff's injury. [Citations omitted.]" (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898 [quoting among others *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498, 499].)

As in the case of Plaintiff's original complaint, Plaintiff does not cite any statute imposing an affirmative, mandatory, nondiscretionary duty on the City, and specifically a mandatory duty which is designed to protect against an injury Plaintiff is claiming he has suffered. To the extent Plaintiff alleges the mandatory duty is for the City to make a determination of his condominium conversion application, issue a written determination, and provide a pathway for appeal, Resolution 26-01 and the Notice of Action show that the City complied with that duty. Documents subject to judicial notice show he obtained the relief he contends is mandated and that he seeks as the relief on this cause of action.

To the extent Plaintiff alleges the mandatory duty is to approve his condominium conversion (or lot split) without requiring the three utility meters to be moved, Plaintiff has not alleged facts or cited law that the City had that mandatory duty; rather, applicable authority cited above shows approval of subdivisions with conditions is within the City's discretion. The provisions of PG&E Rule 16 attached as Exhibit M to the FAC appear to be incomplete, but in any event, Plaintiff has not alleged facts or cited law that shows they apply to a condominium project. (See FAC Exh. M, cited and quoted at length

above.)

The demurrer to the fourth cause of action for failure to perform a mandatory duty is **SUSTAINED**.

E. Declaratory Relief and Injunctive Relief (5th and 6th C/As)

Plaintiff alleges he is "seeking a judicial declaration regarding the applicable legal framework governing Plaintiff's condominium/townhouse (condo/TH) conversion application and Defendants' obligations to lawfully process the application and provide procedural due process." (FAC p. 46, ll. 3-8.) He "judicial declarations clarifying the parties' rights and duties regarding Plaintiff's condo/TH conversion application. Plaintiff seeks declarations regarding the legal framework governing the City's processing of a two-unit condo/TH conversion application, and Defendants' obligations to issue a written determination with findings and provide a meaningful opportunity for administrative appeal. Declaratory relief is sought to resolve the controversy over which standards apply and what procedures the City must follow," and in the prayer for relief, "a judicial declaration clarifying the municipal code provisions applicable to Plaintiff's condominium/townhouse (condo/TH) conversion application and Defendants' procedural obligations to issue a written determination and provide a meaningful opportunity for administrative appeal." (FAC pp. 48-49, and pp. 52-53.)

As to the injunctive relief cause of action, he seeks "an order enjoining Defendants from denying or obstructing processing of the application without a written decision, from recharacterizing the application mid-process without notice and standards, and from blocking Planning Commission review through inconsistent procedures," and specifically in the prayer, "injunctive relief enjoining Defendants from continuing unlawful practices, including denying or obstructing processing of condominium/townhouse (condo/TH) conversion applications without written decisions or findings and obstructing administrative appeals." (FAC p. 49 and p. 53.)

1. Declaratory Relief Not Proper

Defendants contend that an action for declaratory relief may not be maintained to challenge an agency's administrative decision, citing *Tejon, supra*, and *City of Pasadena v. Cohen* (2014) 228 Cal.App.4th 1461. The Court in *Tejon* explained that though declaratory relief may be appropriate to challenge the constitutionality of a statute or regulation, "[w]here, as here, the challenge is to a regulation's 'application to the lands of the complaining part[y], . . . the proper and sole remedy [is] administrative mandamus.' [Citations omitted.]" (*Tejon, supra*, 223 Cal.App.4th at 154-155 [concluding the demurrer to the declaratory relief claim properly sustained, "[b]ecause [plaintiff's] complaint and FAC improperly sought declaratory relief to review a purported administrative decision."].)

In *City of Pasadena, supra*, 228 Cal.App.4th 1461, the Court reversed the trial court's order granting a preliminary injunction on a declaratory relief claim. Citing the "settled" rule " 'that an action for declaratory relief is not appropriate to review an administrative decision.' [Citations omitted.]" The Court of Appeal explained that the trial court instead "could have simply denied injunctive relief and dismissed the action on this ground (with or without leave to amend), or it could have construed the City's pleading as one seeking traditional mandate and (if it has adequately stated the City's entitlement to such relief) ruled on the merits of the challenge to the administrative determination [citations omitted], and issued the writ or denied the petition." (*Id.* at 1467 [emphasis added].)

The declaratory relief cause of action reiterates that Plaintiff is seeking a declaration regarding Defendant's obligation to make a written determination on his application with findings and with an opportunity for review, like the relief sought in the first cause of action for writ of mandate. The existence of the Resolution No. 26-01 shows that Planning Commission review was no longer "blocked" but in fact occurred, and a Notice of Action with appeal information was issued. (Def. RJN Exhs. 12, 13.) The declaratory relief cause of action under the authorities cited above is not the appropriate means to review an administrative decision, i.e., the merits of the Planning Commission determination in Resolution 26-01. For these reasons, the declaratory relief claim does not state a cause of action.

2. Injunctive Relief

The Court concurs in Defendants' position that injunctive relief is a remedy and not a separate cause of action. "Injunctive relief is a remedy, not a cause of action. [Citations omitted.] A cause of action must exist before a court may grant a request for injunctive relief. [Citations omitted.]" (*Allen v. City of Sacramento* (2015) 234 Cal. App. 4th 41, 65 [finding trial court could properly sustain demurrer to injunctive relief cause of action on that ground]; *Camp v. Board of Supervisors* (1981) 123 Cal.App.3d 334, 356 [same].) For the reasons stated above, the FAC in its entirety does not state a cause of action because Plaintiff does not make allegations demonstrating, in light of the January 15, 2026 Resolution 26-01 and Notice of Action, that Plaintiff has exhausted his administrative remedies and that judicial review is now appropriate. Plaintiff's specific causes of action also fail to allege facts to state those substantive claims. Without an underlying viable cause of action, the remedy of injunctive relief is not available.

Conclusion and Ruling

The Court **SUSTAINS** Defendants' demurrer to the FAC in its entirety and to each cause of action. The Court grants Plaintiff **LEAVE TO AMEND** the FAC for Plaintiff to allege facts demonstrating he has exhausted his administrative remedies based on the Planning Commission determination reflected in Resolution 26-01 and the Notice of Action, or facts showing that an exception to the requirement of exhaustion applies.

Given the Court's ruling allowing Plaintiff leave to amend to demonstrate exhaustion of administrative remedies, the Court **SUSTAINS WITH LEAVE TO AMEND** Defendants' demurrers to the first through fifth causes of action in the event that factual developments from the subsequent administrative proceedings, including the Planning Commission determination reflected in Resolution 26-01 and the Notice of Action and any appeal Plaintiff may have taken permit Plaintiff to allege additional facts to state these causes of action.

The Court **SUSTAINS WITHOUT LEAVE TO AMEND** Defendants' demurrer to the **sixth** cause of action for injunctive relief for the reasons stated. The ruling is without prejudice or limitation on Plaintiff's ability to seek injunctive relief as a remedy in any amended complaint if Plaintiff can allege a substantive cause of action for which injunctive relief may be granted as a remedy.